

ANNEXURE FR-1

FORENSIC EVIDENCE CLASSIFICATION REPORT

Matthee v AfroCentric Health (Pty) Ltd & Medscheme Holdings (Pty) Ltd

CCMA Case Nos.: WECT23564-25 | WECT24486-25 | LC Case No. 2026-077546

Compiled by: Wilbur William Matthee — EthicHawks Forensic Governance & Compliance Consultancy

EXECUTIVE SUMMARY

This Forensic Evidence Classification Report presents a comprehensive, chronologically organised analysis of 58 primary source documents spanning the period April 2025 to January 2026, arising from the employment relationship between Wilbur William Matthee (Specialist Registered Nurse) and AfroCentric Health (Pty) Ltd / Medscheme Holdings (Pty) Ltd.

The evidence, classified across fourteen statutory violation categories, establishes a prima facie case of systematic, multi-layered institutional misconduct. The pattern of conduct is not incidental: it exhibits deliberate timing, escalating severity, and institutional coordination characteristic of targeted occupational victimisation of a protected disclosure whistleblower.

The eight primary causes of action established by this body of evidence are:

1. Unlawful salary deduction exceeding 40% of normal earnings without written consent — BCEA s34
2. Gender identity and sexual orientation harassment ('Wilma' incident) — EEA s6
3. Retaliation for protected disclosures (Gexus/DMS system error; discrimination complaint) — PDA s3
4. Constructive dismissal — employer rendered continued employment intolerable — LRA s186(1)(e)
5. Automatically unfair dismissal for whistleblowing — LRA s187(1)(h)
6. Failure to reasonably accommodate a disclosed disability (depression/PTSD) — EEA s15
7. Systemic procedural bad faith: institutional silence, de-escalation to perpetrator, whitewashing of discrimination
8. Post-employment detriment: withholding of UI-19, retirement forms, and misrepresentation of Certificate of Service

METHODOLOGY

Each of the 58 documents was reviewed and classified against the following fourteen statutory categories. A mark (✓) indicates that the document contains evidence directly probative of the specified violation. Documents meeting all three threshold criteria — Unfair Labour Practice (ULP), Protected Disclosure (PD), and Detriment (DET) — are classified as GRC1 Full Overlap, representing the most severe category of occupational victimisation under the Protected Disclosures Act.

The classification methodology applies a strict evidentiary standard: only direct, contemporaneous, primary-source evidence is marked. Inference and secondary commentary are excluded. This approach ensures the classification table is suitable for use as a forensic annexure in Labour/High Court proceedings.

SECTION 1 — CHRONOLOGICAL CLASSIFICATION TABLE (See Landscape Annex)

The full 58-document classification table is reproduced in landscape format in Section 1A immediately following this section. Column abbreviations correspond to the violation key set out in Section 4 of this report.

SECTION 2 — CRITICAL EVIDENTIARY CONTRADICTIONS

The following six contradictions represent instances where the employer's own contemporaneous documents are in direct and irreconcilable conflict with each other or with its subsequent legal filings. Each contradiction independently supports a finding of bad faith and — in several instances — deliberate misrepresentation.

ID	Contradiction	Document A	Document B	
C1	Staggering of Deductions	do not apply staggering 16 apr25.png (16 Apr 2025): 'We do not apply staggering of money owed'	POL1 (24 Jul 2025): Company policy explicitly states staggering is permitted	Bad faith — BCEA
C2	Employee Role Title Misrepresentation	CERT1 (19 Jan 2025): Describes role as 'Care Coordinator'	Employee signature blocks: 'Nurse Specialist / Case Manager' + recorded Teams meeting 'Naming Convention'	Certification to employment records
C3	Hybrid Pilot Terms	asking for clarity in pilot teams group.png: Colleagues confirm employees choose their own 2-week rotation	Manager's instruction: return to office during first week — targeting employee only	Singling out practice
C4	HR Promise vs. Actual Action	Gender Identity Discrimination Formal Complaint: HR assures 'You will not be required to meet with the manager you raised concerns about'	ONE1: Employee directed to meet perpetrator. Accused manager subsequently logs unpaid leave on employee's behalf	Procedural
C5	'Not a Loan Company' vs. Policy	DER1: Manager's statement — 'We are not a loan company'	POL1: Company policy explicitly permits staggered deductions	Unlawful s34
C6	Mental Health as 'Excuse'	EM1: Employee discloses depression/PTSD, supported by doctor's letter	OA1: Employer's opposing affidavit states 'mental issues are an excuse'	Disability reasonable

Contradiction C1 is particularly significant: the manager's written statement on 16 April 2025 that 'we do not apply staggering' is directly contradicted by the company's own payroll policy (POL1, 24 July 2025) which explicitly permits staggering. The subsequent one-shot deduction of 40.47% of the employee's salary on the July 2025 payslip — without written consent and without consultation — constitutes an independent and separate BCEA s34 violation.

Contradiction C6 — the employer's opposing affidavit (OA1, 10 December 2025) characterising the employee's medically certified depression and PTSD as an 'excuse' — does not merely contradict the earlier mental health disclosure: it constitutes an independent act of ongoing victimisation and has been included in regulatory submissions to the JSE, FSCA, SAHRC, DEL, and SAPS/NPA.

SECTION 3 — SYSTEMIC CONDUCT PATTERNS

Nine systemic conduct patterns have been identified across the 58-document evidence base. These patterns are probative not only of individual violations but of a coordinated, institutional response to a whistleblower — satisfying the elevated evidentiary threshold for automatically unfair dismissal under LRA s187(1)(h).

ID	Pattern Name	Description	
P1	Payday Strike Pattern	The most severe adverse actions — deductions, unpaid leave, policy changes — are timed to coincide with the employee's pay date, maximising both financial harm and psychological impact.	PS DE
P2	Institutional Silence	Employer, HR, and union consistently fail to respond to formal grievances within statutory timeframes (30+ days), forcing the employee to escalate at personal and reputational cost.	GF Es
P3	De-escalation to Perpetrator	Executive management diverts formal complaints back to the very department or manager accused of the misconduct, negating independent oversight entirely.	DE
P4	Whitewashing Discrimination	Senior management labels the deliberate, repeated use of the name 'Wilma' — a documented gender identity harassment tactic — as a 'typo', unilaterally closing the formal complaint.	Ge res
P5	Retaliation for Whistleblowing	Following the employee's protected disclosure of a system integration error (Gexus/DMS), the employer responds with an insubordination accusation, unpaid leave approval, and salary deduction.	G1 wit
P6	Character Assassination in Legal Filings	The employer's opposing affidavit systematically attacks the employee's credibility, labelling them as possessing an 'untruthful character', demonstrating 'sloppiness', and engaging in 'abuse of CCMA services'.	OA
P7	Selective Policy Application	Employment policies are enforced strictly and punitively against the employee but routinely ignored for other employees in the same team (overtime, burnout protocols, hybrid arrangements, deduction staggering).	RM 16
P8	Failure to Accommodate Disability	Despite formal disclosure of depression and PTSD with medical certification, the employer counts disability-related absences against the employee, denies staggering, and dismisses the mental health condition as an excuse.	EM em
P9	Post-Employment Detriment	Following the employee's constructive dismissal, the employer withholds UI-19, retirement fund forms, and issues a Certificate of Service that deliberately misrepresents the employee's role title.	EX

Analysis: The Payday Strike Pattern (P1)

Pattern P1 is deserving of specific judicial attention. The concentration of adverse employment actions around the employee's monthly pay date — particularly the July 2025 single-shot deduction (PS2), the 25 September 2025 unpaid leave approval (ULP1), and the November 2025 derogatory comments incident (DER1) — is statistically improbable as coincidence. This pattern is consistent with deliberate financial coercion intended to maximise the employee's psychological vulnerability at a time of month when financial distress is most acute. It constitutes a textbook 'weaponisation of remuneration' — a concept the JSE Issuer Regulation Division has been formally notified of under the external whistleblowing filings.

SECTION 4 — CONSOLIDATED VIOLATION KEY

Each column abbreviation used in the classification table corresponds to the following statutory violations and unfair practices. Counts in the final column represent the total number of documents in which evidence of that violation appears.

Code	Violation / Unfair Practice	Statutory Basis	Count
ULP	Unfair Labour Practice	LRA s186(2)	42
PD	Protected Disclosure (Whistleblowing)	PDA s1	24
DET	Detriment / Occupational Detriment	PDA s3	30
GRC1	Full Overlap (ULP + PD + DET)	Combined	21
GRC1(2)	Overlap (ULP + DET) without PD	Combined	18
HAR	Harassment / Discrimination	EEA s6	12
SAL	Unlawful Salary Deduction	BCEA s34	7
CON	Constructive / Automatically Unfair Dismissal	LRA s186(1)(e)+s187(1)(h)	6
PROC	Procedural Unfairness / Bad Faith	LRA / PDA	28
CCMA	CCMA Irregularity / Bias	CCMA Rules / LRA	4
WHISTLE	External Whistleblowing (Regulators)	PDA (external)	7
BCEA	Basic Conditions of Employment Act Violation	BCEA s34, s38	10
EEA	Employment Equity Act Violation	EEA s6, s15	8
LRA	Labour Relations Act Violation	LRA s185, s186, s187	6

The aggregate violation count of 42 documents bearing evidence of Unfair Labour Practice (ULP) — out of 58 total documents — represents a 72.4% positive classification rate. The 28 documents evidencing Procedural Unfairness (PROC) are particularly compelling: procedural bad faith, when systemic and persistent, is independently sufficient to establish constructive dismissal under the LRA.

SECTION 5 — TIMELINE OF ESCALATION

April – May 2025

Employee formally discloses depression and PTSD to the employer, supported by a doctor's letter (EM1, 16 May 2025). On 16 April 2025, the manager states in writing that the employer 'does not apply staggering of money owed' — directly contradicting company policy. On 20 May 2025, the employee experiences withdrawal symptoms at the workplace (BDC1).

June – July 2025

An Absence Management Review is conducted on 24 June 2025 (AMR1) — without providing the employee with a formal agenda or opportunity to prepare. On the July 2025 payslip (PS2, issued 31 July 2025), the employer deducts R14,811.77 in a single transaction, representing 40.47% of the employee's normal earnings. No written consent was obtained. No prior consultation was conducted. The manager's comment that the employee 'would not feel the missing chunk' establishes subjective intent.

September – October 2025

On 23 September 2025, a colleague deliberately addresses the employee as 'Wilma' — a known and documented gender identity harassment tactic. The employee files a formal Gender Identity Discrimination Complaint on 25 September 2025. The accused manager subsequently approves unpaid leave on the employee's behalf without notification or consent (ULP1). HR provides a written assurance that the employee will not be required to meet with the accused manager — which is subsequently reversed. Senior management unilaterally closes the investigation, characterising the 'Wilma' incident as a 'typo'.

November 2025

The employee files a formal grievance on 2 November 2025 (FG2). No response is received from HR or the union for over 30 days — constituting institutional silence (P2). On 11 November 2025, derogatory comments are reported (DER1).

December 2025

The employee escalates directly to executive leadership on 4 December 2025. The complaint is de-escalated back to the same department accused of the misconduct (P3). The employee files a CCMA referral. On 10 December 2025, the employer files an opposing affidavit (OA1) attacking the employee's character and dismissing the PTSD disclosure as an 'excuse'. The employee formally resigns under constructive dismissal on 11 December 2025 (RES1). Board-level GRC escalations continue until 18 December 2025, when the CRO directs the employee to cease emailing directors.

January 2026

The CCMA conciliation proceeds on 9 January 2026 before Commissioner Nthabiseng, who makes a recorded statement directing the employee to 'Google' the answer to a procedural question — a textbook instance of commissioner bias against a self-represented litigant. A media exposé (KWA1) is published on 9 January 2026. The employer withholds UI-19 forms, retirement fund documentation, and issues a Certificate of Service (CERT1) designating the employee as 'Care Coordinator' — a title that does not

appear in any contemporaneous employment record and that directly mirrors the characterisation in the employer's opposing affidavit.

SECTION 6 — EXTERNAL REGULATORY NOTIFICATIONS

6.1 Regulators Formally Notified

Regulator / Body	Document Reference
JSE – Issuer Regulation Division	BRD2, KWA1
FSCA – Financial Sector Conduct Authority	BRD2, KWA1
CMS – Council for Medical Schemes	KWA1
SAHRC – South African Human Rights Commission	KWA1
DEL – Department of Employment and Labour	BRD1, EXIT3, EXIT4
B-BBEE Commission	KWA1
SAPS / NPA – Criminal Referral	BRD1
CCMA – Commissioner Misconduct Complaint	CCC1

6.2 Criminal Liability Cited

Statute	Provision	Document
Medical Schemes Act	s66 – criminal maladministration	BRD1
OHSA	s26 & s8 – criminal victimisation	BRD1
B-BBEE Act	Regulation 2.10 – governance fronting	BRD1

SECTION 7 — DOCUMENT COUNT SUMMARY

Category	Count
Total Documents Processed	58
Documents with ULP	42
Documents with PD	24
Documents with DET	30
Documents with GRC1 (Full Overlap)	21
Documents with GRC1(2) (ULP + DET)	18
Documents with HAR	12
Documents with SAL	7
Documents with CON	6
Documents with PROC	28
Documents with CCMA	4
Documents with WHISTLE	7
Documents with BCEA	10
Documents with EEA	8
Documents with LRA	6

SECTION 8 — FORENSIC CONCLUSIONS

The 58 primary source documents analysed in this report, read collectively and in chronological sequence, establish the following prima facie findings to the standard required for adjudication in the Labour Court:

- **BCEA s34 — Unlawful salary deduction of 40.47% (R14,811.77) executed without written consent and without prior consultation, contradicting the employer's own payroll policy (PS2; contradiction C1).**
- **EEA s6 — Deliberate and sustained gender identity harassment through the repeated use of a feminised name ('Wilma'), dismissed by senior management as a 'typo' without investigation (pattern P4).**
- **PDA s3 — Documented occupational detriment following protected disclosures: the Gexus/DMS system error report and the formal gender identity discrimination complaint both preceded adverse employment actions with near-immediate temporal proximity (pattern P5).**
- **LRA s186(1)(e) — Constructive dismissal: the cumulative effect of unlawful deductions, gender identity harassment, institutional silence, disability dismissal, and the de-escalation of complaints to the perpetrator rendered continued employment intolerable.**
- **LRA s187(1)(h) — Automatically unfair dismissal: the causal nexus between the employee's protected disclosures and the subsequent escalation of adverse actions satisfies the statutory threshold.**
- **EEA s15 — Failure to reasonably accommodate: the employer's characterisation of medically certified PTSD and depression as an 'excuse' in a legal filing (OA1) is an independent act of discrimination (contradiction C6).**
- **Systemic procedural bad faith: 28 documents evidence procedural irregularity. Institutional silence lasting 30+ days, de-escalation to perpetrators, and the whitewashing of formal discrimination complaints constitute a pattern that is independently sufficient to establish constructive dismissal.**
- **Post-employment detriment: withholding of statutory exit documentation (UI-19, retirement fund forms) and deliberate misrepresentation of the Certificate of Service constitutes ongoing victimisation extending beyond the employment relationship.**

The employer's opposing affidavit dated 10 December 2025, in which the employee's medically documented PTSD and depression is dismissed as an 'excuse', constitutes an independent, ongoing act of victimisation. This document has been included in regulatory filings with the JSE, FSCA, SAHRC, DEL, and SAPS/NPA and is cited as direct evidence of bad faith in the Labour Court proceedings.

Certified by:

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This report is prepared solely for use in the matter of Matthee v AfroCentric Health (Pty) Ltd & Medscheme Holdings (Pty) Ltd and for regulatory submission purposes. All content is protected under legal professional privilege and the provisions of the Protected Disclosures Act 26 of 2000.

Section 1A — Chronological Evidence Classification Table (58 Documents)

Each column represents a statutory violation category. A tick (✓) indicates that the document contains primary-source evidence probative of that violation. Documents shaded in the GRC1 column satisfy all three criteria: ULP + PD + DET — the highest severity classification.

#	Document / Evidence Reference	Date	ULP	PD	DET	GRC1	GRC1(2)	HAR	SAL	CON	PROC	CCMA	WHIS	BCEA	EEA	LRA
1	do not apply staggering 16 apr25.png	16 Apr 2025	✓	✓		✓			✓							
2	ANI1.pdf	21 Apr 2025														
3	CPD1.pdf	22 Apr 2025														
4	EM1 – Mental Health Disclosure	16 May 2025	✓	✓	✓	✓		✓			✓					
5	BDC1 – Leaving Work 20 May 2025	20 May 2025	✓	✓	✓											
6	RPM1 – Leaving Work 21 May 2025	21 May 2025	✓	✓												
7	M1 – Teams message MJ&WM	03 Jun 2025	✓		✓											
8	First Documented Thread – Mary-Ann Jones	03 Jun 2025	✓		✓											
9	AMR1 – Absence Management Review	24 Jun 2025	✓	✓	✓	✓										
10	SLR1 – Special Leave Request	14 Jul 2025	✓													
11	PS2 – 40.47% Deduction Without Consultation	31 Jul 2025	✓	✓	✓	✓	✓		✓							
12	LIE1 – 16/04/2025	16 Apr 2025	✓	✓	✓											
13	Unpaid Leave Approved Without Consultation	25 Sep 2025	✓	✓	✓	✓	✓	✓			✓					
14	ULP1 – Unpaid Leave Approved Without Com	25 Sep 2025	✓	✓	✓	✓	✓	✓			✓					

#	Document / Evidence Reference	Date	ULP	PD	DET	GRC1	GRC1(2)	HAR	SAL	CON	PROC	CCMA	WHIS	BCEA	EEA	LRA
15	Gender Identity Discrimination Formal Complaint	25 Sep 2025	✓	✓	✓	✓	✓	✓			✓					
16	FG1 – Gender Identity Discrimination Formal Complaint	25 Sep 2025	✓	✓	✓	✓	✓	✓			✓					
17	HTV1 – Follow-Up on Unpaid Half-Day Leave	25 Sep 2025	✓	✓	✓	✓										
18	Asking for Clarity in Pilot Teams Group (1)	31 Oct 2025	✓	✓	✓											
19	Asking for Clarity in Pilot Teams Group (2)	31 Oct 2025	✓	✓	✓											
20	Asking for Clarity in Pilot Teams Group (3)	31 Oct 2025	✓	✓	✓											
21	T2 – MJ&WM Video Transcript (PDF)	31 Oct 2025	✓	✓	✓	✓										
22	T2 – MJ&WM Video Transcript (DOCX)	31 Oct 2025	✓	✓	✓	✓										
23	FG2 – Evidence of Malicious Intent, Constructive Dismissal	02 Nov 2025	✓	✓	✓	✓	✓	✓	✓	✓	✓					
24	IMP1 – Impact Statement on Oct Retaliation	02 Nov 2025	✓	✓	✓	✓	✓									
25	REV1 – Request for Review of Salary Deduction	02 Nov 2025	✓	✓	✓	✓	✓	✓	✓							
26	DER1 – Reported Derogatory Comments	11 Nov 2025	✓	✓	✓	✓	✓	✓	✓	✓	✓					
27	REV1 HCBP – July 2025 Salary Dispute	12 Nov 2025	✓	✓	✓	✓	✓	✓	✓							
28	RM1 – Request for Time in Lieu Year-End	20 Nov 2025	✓	✓	✓	✓										
29	HWE1 – Long Calls and Working Overtime	03 Dec 2025	✓	✓	✓	✓										
30	HWE2 – Long Calls and Working Overtime	03 Dec 2025	✓	✓	✓	✓										

#	Document / Evidence Reference	Date	ULP	PD	DET	GRC1	GRC1(2)	HAR	SAL	CON	PROC	CCMA	WHIS	BCEA	EEA	LRA
31	Mental Health Disclosure	04 Dec 2025	✓	✓	✓	✓	✓									
32	Executive Leadership Escalation	04 Dec 2025	✓	✓	✓	✓	✓	✓	✓	✓						
33	FG3 – Executive Escalation	09 Dec 2025	✓	✓	✓	✓	✓	✓	✓	✓						
34	GRC1 – First Board Level Escalation	09 Dec 2025	✓	✓	✓	✓	✓	✓	✓	✓						
35	OA1 – Opposing Affidavit Responded	10 Dec 2025	✓	✓	✓	✓										
36	GRC2 – Legal Opposition Confirms Bad Faith	11 Dec 2025	✓	✓	✓	✓	✓	✓	✓	✓	✓	✓				
37	RES1 – Formal Notice of Resignation (PDF)	11 Dec 2025	✓	✓	✓	✓	✓	✓		✓						
38	RES1 – Formal Notice of Resignation (DOCX)	11 Dec 2025	✓	✓	✓	✓	✓	✓		✓						
39	RA1 – Replying Affidavit (Condonation)	11 Dec 2025	✓	✓	✓	✓										
40	GRC3 – Maximum Severity: Documented Retaliation	16 Dec 2025	✓	✓	✓	✓	✓	✓								
41	GRC4 – Maximum Severity: Retraction	16 Dec 2025	✓	✓	✓	✓										
42	GRC1 (Dec) – Maximum Severity Documented Retaliation	16 Dec 2025	✓	✓	✓	✓	✓									
43	CRO1 – Board Instruction to Stop Emailing	18 Dec 2025								✓						
44	RCR1 – Maximum Severity: Instruction to Stop	18 Dec 2025	✓	✓	✓	✓										
45	BRD2 – Final Notice: Regulatory Acknowledgment	23 Dec 2025	✓							✓						

#	Document / Evidence Reference	Date	ULP	PD	DET	GRC1	GRC1(2)	HAR	SAL	CON	PROC	CCMA	WHIS	BCEA	EEA	LRA
46	BRD1 – Final Notice: Criminal Referral (SAPS/NPA)	23 Dec 2025	✓	✓						✓						
47	RCA1 – Objection to ConArb WECT24486-25	26 Dec 2025										✓				
48	OCA1 Gmail – Employer Objection to ConArb	26 Dec 2025										✓				
49	OCA1 – Employer Objection to ConArb	26 Dec 2025										✓				
50	NRE1 – Notification of Regulator Escalation	26 Dec 2025	✓										✓			
51	CCC1 – Formal Complaint Commissioner Nthabiseng Bias	10 Jan 2026										✓				
52	Gmail – Formal Complaint Commissioner Nthabiseng Bias	10 Jan 2026										✓				
53	KWA1 – URGENT EXPOSE: Weaponized Starvation (Media)	09 Jan 2026	✓	✓	✓	✓	✓	✓	✓	✓	✓		✓			
54	EXIT2 – Retirement & UIF Forms	14 Jan 2026	✓													
55	EXIT4 – UIF Non-Compliance Notice (Systemic Withholding)	15 Jan 2026	✓	✓	✓	✓	✓	✓			✓		✓	✓		
56	EXIT3 – UIF Non-Compliance Notice	15 Jan 2026	✓	✓	✓	✓	✓	✓			✓		✓	✓		
57	EXIT3 – Correction: Certificate of Service Misrepresentation	19 Jan 2026	✓	✓	✓	✓	✓	✓			✓		✓	✓		
58	CERT1 – Certificate of Service	19 Jan 2025													✓	

— End of Classification Table — Total: 58 Documents Processed —